

Herve (LA-EN)

Part II, Chapter II — General Corollaries (nn. 497–502, pp. 492–495)

Latin	English
497. I. Concilium non est supra Papam. — 1. Ex dictis luculenter ostenditur <i>concilium cum Papa non</i> esse superius ipso Pontifice seorsim accepto ; in utroque <i>eadem</i> omnino adest auctoritas suprema, eadem infallibilitas, et nil amplius [c. 228, § 1]. Episcopi enim, per se potestate tantum subordinata pollentes, suprema autem in concilio, prout ipsi Pontifici uniti, nec ex se, nec ratione adunationis in concilio, aliquid addunt potestati Papæ, quæ, <i>per se et ex se sola</i>, plena est et suprema. 2. Concilium vero <i>absque Papa</i>, non solum superius non est Pontifice, uti voluerunt Gallicani, sed absolute <i>inferius</i>, uti liquet ex tota doctrina de primatu. Merito igitur sententiam <i>Pii II</i> appellationes a Papa ad concilium damnantis¹, his verbis renovavit <i>Vaticanum</i>, D. 1830 : « <i>Quare a recto veritatis tramite aberrant, qui affirmant, licere ab iudiciis Romanorum Pontificum ad œcumenicum concilium tanquam ad auctoritatem R. Pontifice superiorem appellare</i> » . Cod. c. 228, § 2 ; 2332.	497. I. The Council is not above the Pope. — 1. From what has been said, it is clearly demonstrated that <i>a council together with the Pope</i> is not superior to the Pontiff taken separately; in both cases there is present the very <i>same</i> supreme authority, the same infallibility, and nothing more [c. 228, § 1]. For the bishops, who by themselves possess only subordinate power, but supreme power in council insofar as they are united to the Pontiff himself, add nothing to the power of the Pope—neither of themselves nor by reason of their assembly in council—since his power is, <i>by itself and from itself alone</i>, full and supreme. 2. A council <i>without the Pope</i>, however, is not only not superior to the Pontiff, as the Gallicans wished to maintain, but is absolutely <i>inferior</i>, as is evident from the entire doctrine concerning the primacy. Therefore, the <i>Vatican Council</i> rightly renewed the teaching of <i>Pius II</i> condemning appeals from the Pope to a council², with these words, D. 1830: “<i>Therefore, they stray from the straight path of truth who affirm that it is lawful to appeal from the judgments of the Roman Pontiffs to an ecumenical council as to an authority superior to the Roman Pontiff.</i>” Code c. 228, § 2; 2332.

<i>Latin</i>	<i>English</i>
3. Quapropter, <i>Sede vacante</i>, tametsi, propter promissiones perennis indefectibilitatis et permanentiam in ea Spiritus veritatis, Ecclesia <i>una</i> remaneat, nec a fide tradita deficere possit nec a communione cum Sede Petri, in hæresim aut in schisma universaliter labendo attamen <i>neque nova dogmata definire potest, neque decreta pro Ecclesia universali</i> obligatoria ferre valet. <i>Sede enim vacante</i>, episcoporum collegium <i>non est æcumenicum</i>, et deest subjectum in quo potestas supra universam Ecclesiam resideat³. 498. II. Quid de decretis Constantiensibus? — Falso provocant adversarii ad decreta, a conc. <i>Basileensi</i> innovata, sed a conc. <i>Constantiensi</i> lata, quibus declaratur se « <i>potestatem a Christo immediate habere, cui quilibet cujuscumque status vel dignitatis, etiamsi papalis exsistat, obedire tenetur in his quæ pertinent ad fidem et extirpationem dicti schismatis</i> »⁵. 1° Namque hæc decreta non fuerunt <i>conciliariter</i> facta, quia edita fuerunt a <i>sola</i> obedientia Joannis XXIII et quidem <i>non integra</i>, quæ profecto universam Ecclesiam non repræsentabat ; sed et <i>tumultuose</i>, suffragiis <i>per nationes</i> datis, laicis ipsis et presbyteris votum edentibus ; insuper non inter decreta fidei, sed inter meras <i>constitutiones synodales</i> ab ipso concilio collocata sunt. Jamvero Martinus V approbavit utique decreta conc. Const. contra Wiclef, Huss et Hieronymum de Praga, necnon et decretum de communione	3. Therefore, <i>when the See is vacant</i>, although the Church remains <i>one</i> on account of the promises of perpetual indefectibility and the permanence of the Spirit of truth within her, and cannot defect from the tradition of faith nor from communion with the See of Peter by falling universally into heresy or schism, nevertheless <i>she can neither define new dogmas nor issue decrees binding upon the universal Church</i>. For <i>when the See is vacant</i>, the college of bishops is <i>not ecumenical</i>, and there is lacking a subject in whom power over the universal Church resides⁴. 498. II. What of the Constantian decrees? — The adversaries falsely appeal to the decrees promulgated by the Council of <i>Basel</i> as innovations, but issued by the Council of <i>Constance</i>, by which it declares that it “<i>has power immediately from Christ, to whom anyone of whatever status or dignity, even if he be papal, is bound to obey in those matters which pertain to faith and the extirpation of the said schism</i>”⁶. 1° For these decrees were not made <i>conciliarly</i>, because they were issued by the <i>sole</i> obedience of John XXIII and indeed <i>not in its entirety</i>, which certainly did not represent the universal Church; but they were also issued <i>tumultuously</i>, with votes given <i>by nations</i>, with laymen themselves and priests casting votes; moreover, they were placed not among the decrees of faith, but among mere <i>synodal constitutions</i> by the council itself. Now indeed, Martin V certainly approved the decrees of the Council of Constance against Wycliffe, Huss, and Jerome of Prague, as well as the decree concerning communion under

<i>Latin</i>	<i>English</i>
sub una specie et saluum conductum hæreticis datum (Denz. 581 sq.) ; decreta autem <i>de superioritate concilii supra Papam</i> , prorsus rejecit et irrita fecit, nedum ea approbaverit.	one species and the safe conduct given to heretics (Denz. 581 ff.); but the decrees <i>concerning the superiority of a council over the Pope</i> , he utterly rejected and rendered null and void, far from approving them.
1. Paulo ante enim statuerat quod « <i>nulli fas est a Supremo Judice, videlicet Apostolica Sede seu Romano Pontifice... appellare</i> » ; id testatur ipse Gerson (<i>Quomodo et an liceat a S. Pontifice appellare</i>), illud Pontificis mandatum impugnando, utpote decisionibus constantiensibus contrarium.	1. For somewhat earlier he had decreed that “ <i>it is not lawful for anyone to appeal from the Supreme Judge, namely the Apostolic See or the Roman Pontiff...</i> ”; Gerson himself testifies to this (<i>How and Whether It Is Lawful to Appeal from the Supreme Pontiff</i>), attacking that mandate of the Pontiff as being contrary to the Constance decisions.
2. Postea iterum approbavit et ratificavit « <i>omnia et singula decreta conc. Const... quæ in materia fidei conciliariter statuta erant, et non aliter nec alio modo</i> ». Ergo.	2. Afterwards he again approved and ratified “ <i>each and every decree of the Council of Constance... which had been established conciliarly in matters of faith, and not otherwise or in any other manner</i> ”. Therefore [the conclusion follows].
3. <i>J. Turrecremata</i> , <i>S. Antoninus</i> et alii sancti et docti viri ista decreta rejecerunt, quod minime fecissent, si sanctione Pontificis munita fuissent.	3. <i>Juan de Torquemada</i> , <i>Saint Antoninus</i> and other holy and learned men rejected those decrees, which they would by no means have done if they had been fortified by pontifical sanction.
4. Neque aliter unquam a sequentibus Pontificibus, nominatim <i>Eugenio IV</i> , <i>Pio II</i> , et <i>Leone X</i> , susceptum et agnitum est conc. Constantiense ⁷ . Ergo.	4. Nor was the Council of Constance ever received and acknowledged otherwise by subsequent Pontiffs, namely <i>Eugene IV</i> , <i>Pius II</i> , and <i>Leo X</i> ⁸ . Therefore [the conclusion follows].
2° Præterea, a) ex ipsa <i>affirmatione conc. Patrum</i> qui declarant hæc fieri « <i>pro exstirpatione præsentis schismatis</i> », et ipsum Papam obedire teneri « <i>in his quæ pertinent ad exstirpationem dicti schismatis</i> » ; b) ex <i>testimonio J. Turrecremata</i> ⁹ : « <i>decretum illorum Patrum non loquitur de qualibet Synodo universaliter, sed de illa singulariter pro cujus tempore</i>	2° Moreover, a) from the very <i>affirmation of the Council Fathers</i> who declare that these things are done “for the extirpation of the present schism,” and that the Pope himself is bound to obey “in those matters which pertain to the extirpation of the said schism”; b) from the <i>testimony of Johannes de Turrecremata</i> ¹⁰ : “that decree of those Fathers does not speak of any synod universally, but of that one singularly for whose time there was not in the

<i>Latin</i>	<i>English</i>
non erat in Ecclesia unus pastor totius Ecclesiæ indubitatus » ; patet hujusmodi decreta spectare schisma <i>tunc vigens</i> et <i>solum casum Papæ hujus temporis</i>, Papæ dubii, seu ad summum in genere casum cujusvis Papæ dubii respicere. 499. III. Utrum Concilium, seorsum a Papa, aliquid determinare possit de persona Papæ ?¹¹. Quoad electionem Papæ : Ordinarie ad solum Pontificem spectat modum determinare <i>transmissionis potestatis supremæ</i>, adeoque et <i>electionis</i>, per quam transmissio ista perficitur, cum ipsi soli in persona Petri collatus sit primatus in proprium. Reapse autem Pontifices leges statuerunt, quibus regulatur electio Pontificalis, quæ, sede vacante, a solis electoribus a Papa antea designatis legitime fieri potest. Extraordinarie vero, <i>si forte</i> Pontificem eligere oporteret, quin potuissent servari conditiones electionis regularis, minime repugnare videtur quod potestas electionis ad <i>concilium generale</i> devolveretur, cum ex lege naturæ quævis societas jus habeat sibi consulendi, et in casu non sit aliud medium aptius et efficacius. De facto tamen hoc <i>nunquam contigit</i>, quia conc. <i>Constantiense</i>, non ex se et <i>auctoritate propria</i>, sed ex <i>facultate sibi concessa</i> a vero et legitimo Pontifice Gregorio XII¹³, antequam ipse papatui renuntiaret, ad canonicam et certam electionem unici futuri S. Pontificis, Martini V nempe, legitime processit, quando, per abdicationem ejusdem Gregorii,	Church one undoubted pastor of the whole Church”; it is evident that decrees of this kind regard the schism <i>then prevailing</i> and concern <i>only the case of a Pope of that time</i>, a doubtful Pope, or at most generally regard the case of any doubtful Pope. 499. III. Whether a Council, apart from the Pope, can determine anything concerning the person of the Pope?¹² Regarding the election of the Pope: Ordinarily it pertains to the Pontiff alone to determine the manner of <i>transmission of supreme power</i>, and accordingly also of <i>election</i>, through which that transmission is accomplished, since the primacy was conferred in his own right upon him alone in the person of Peter. In actual fact, however, the Pontiffs have established laws by which the pontifical election is regulated, which, when the see is vacant, can be legitimately conducted only by those electors previously designated by the Pope. In extraordinary circumstances, however, <i>if by chance</i> it should be necessary to elect a Pontiff when the conditions of a regular election could not be observed, it does not seem at all contrary that the power of election would devolve to a <i>general council</i>, since by natural law any society has the right to provide for itself, and in such a case there would be no other more suitable and efficacious means. In fact, however, this has <i>never occurred</i>, because the Council of Constance proceeded legitimately to the canonical and certain election of the one future Supreme Pontiff, namely Martin V, <i>not from itself and by its own authority, but from the faculty granted to it</i> by the true and legitimate Pontiff Gregory XII¹⁴, before he himself renounced the papacy—when, through the abdication of the same Gregory, the Apostolic See was truly left vacant.

<i>Latin</i>	<i>English</i>
sedes Apostolica vere relicta est vacua.	
500. Quoad depositionem Papæ : Pontifex certe potest ipse libere papatui renunciare et ipso facto abdicationis a pontificatu cessat (can. 221) ; et tunc, Sedi quam vacantem agnoscit, pleno jure et pro more simpliciter providere potest Ecclesia. Nullo autem modo nullaque ratione deponi potest Pontifex <i>a concilio</i> , cum superior ab inferiore judicari nequeat : « <i>Prima Sedes a nemine judicatur</i> ». C. 1556.	500. Regarding the deposition of the Pope: The Pontiff certainly can freely renounce the papacy of his own accord and ceases from the pontificate by the very fact of abdication (canon 221); and then, the Church can provide for the See which it recognizes as vacant with full right and according to custom. In no way and for no reason, however, can the Pontiff be deposed <i>by a council</i> , since a superior cannot be judged by an inferior: “ <i>The First See is judged by no one.</i> ” Canon 1556.
a) <i>Non ratione pravitatis morum</i> : Papa enim scandalosus, <i>verus est papa</i> cui omnino parendum est, et illum deponere non potest Ecclesia, sed Domino supplicare potest et debet ut ipse remedium adhibeat.	a) <i>Not by reason of moral depravity</i> : For a scandalous Pope <i>is a true pope</i> who must be obeyed in all things, and the Church cannot depose him, but can and ought to supplicate the Lord that He Himself might apply a remedy.
b) <i>Non ratione hæreseos</i> : Nam posito quod, ut <i>persona privata</i> , hæreticus publice quidem, <i>notorie</i> et <i>contumaciter</i> fieri possit Pontifex, — quod generatim negant theologi, suavem Christi Providentiam erga Ecclesiam et promissiones ejus divinas spectantes ¹⁵ , — <i>ipso facto</i> hæreseos a pontificali potestate excideret, « <i>dum propria voluntate transferretur extra corpus Ecclesiæ, factus infidelis</i> ». Tunc Concilium [Ecclesia] jus tantum haberet sedem vacantem declarandi, ut ad electionem tuto procedere possent consueti electores ¹⁶ .	b) <i>Not by reason of heresy</i> : For given that, as a <i>private person</i> , one who is publicly, <i>notoriously</i> and <i>contumaciously</i> heretical could become Pontiff—which theologians generally deny, considering the gentle Providence of Christ toward the Church and His divine promises ¹⁷ —he would fall from pontifical power <i>by that very fact</i> of heresy, “since by his own will he would transfer himself outside the body of the Church, having become unfaithful.” Then the Council [Church] would have only the right to declare the see vacant, so that the customary electors could safely proceed to an election ¹⁸ .
c) <i>Non ratione Pontificis dubii</i> : Pontificem dubium Ecclesiæ judicio subjici simpliciter statuerunt PP. Constantienses, juxta illud : « Papa dubius, Papa nullus ». Porro « verum istud, ait « Franzelin (th. 13), verum est duntaxat, si dubium et propter « dubium secessio est	c) <i>Not by reason of a doubtful Pontiff</i> : The Fathers of Constance simply established that a doubtful Pontiff is subject to the judgment of the Church, according to that principle: “A doubtful Pope is no Pope.” Furthermore, “this is true,” says Franzelin (thesis 13), “this is true only if the doubt and, on account

<i>Latin</i>	<i>English</i>
<i>totius Ecclesiæ ; non autem potest admitti, « si, postquam Pontifex legitime est constitutus, in parte, imo in « parte etiam majori Ecclesiæ, propter inductas perturbationes « dubia et secessiones oriantur ».</i> Unde, <i>si universalis Ecclesia</i> a Pontifice quodam <i>secedit</i>, signum est infallibile, juxta superius dicta, non illum, antea Papam, nunc a potestate sua privari ista defectione, sed illum <i>nunquam</i> fuisse verum et legitimum Pontificem, cum Christus, in promissis fidelis, permittere non possit ut tota Ecclesia falso adhæreat Pontifici aut verum rejiciat. Quoad autem alios casus, amplectenda videtur sententia optimorum theologorum, qui censent solutionem dubii de vero Pontifice quærendam esse, non in potestate concilii in ordine ad depositionem Papæ, sed <i>in benigna Dei providentia</i>, quæ in posterum, si opus fuerit, sicuti tempore Magni Schismatis, <i>salvis omnibus legibus</i>, perturbationibus finem imponere dignabitur. 501. IV. Jurisdictio Pontificis nullis decretis aut canonibus pure ecclesiasticis coactive ligatur. — Dico : 1. <i>coactive</i>, scilicet ita ut valor actuum Pontificis a canonibus pendeat, et eos non servando, præceptum superioris transgrediatur ipse ; — 2. <i>canonibus pure ecclesiasticis</i>, nam juri <i>divino</i>, sive <i>naturali</i> lege statutum sit sive lege <i>positiva</i>, certo subditur Pontifex. Probatur : a) <i>Ex natura primatus</i> : Potestas, a Christo Petro collata, est potestas ei unice propria, omnino illimitata, universalissima, ex se efficax, et <i>a quavis alia potestate</i>, quæ non sit Dei,	of the doubt, the secession belongs to the <i>entire</i> Church; but it cannot be admitted if, after a Pontiff has been legitimately established, doubts and secessions arise in part of the Church, indeed even in the greater part of the Church, due to introduced disturbances.” Hence, <i>if the universal Church</i> secedes from a certain Pontiff, it is an infallible sign, according to what was said above, not that he, formerly Pope, is now deprived of his power by this defection, but that he was <i>never</i> a true and legitimate Pontiff, since Christ, faithful in His promises, cannot permit the entire Church to falsely adhere to a Pontiff or to reject the true one. Regarding other cases, however, the opinion of the most excellent theologians seems to be embraced, who hold that the resolution of doubt concerning the true Pontiff should be sought, not in the power of a council with regard to the deposition of the Pope, but <i>in the benign providence of God</i>, which in the future, if it should be necessary, just as in the time of the Great Schism, <i>with all laws preserved</i>, will deign to put an end to disturbances. 501. IV. The jurisdiction of the Pontiff is not bound coercively by any purely ecclesiastical decrees or canons. — I say: 1. <i>coercively</i>, namely in such a way that the validity of the Pontiff’s acts would depend upon the canons, and by not observing them, he himself would transgress the precept of a superior; — 2. <i>by purely ecclesiastical canons</i>, for the Pontiff is certainly subject to <i>divine</i> law, whether it be established by <i>natural</i> law or by <i>positive</i> law. This is proven: a) <i>From the nature of the primacy</i>: The power conferred by Christ upon Peter is a power uniquely proper to him, absolutely unlimited, most universal, efficacious in itself, and entirely <i>independent</i> from any other power that is not of God.

<i>Latin</i>	<i>English</i>
prorsus <i>independens</i>. Ergo, nedum a canonibus ecclesiasticis moderari possit aut impediri, circa eos etiam absolute exerceri potest. b) <i>Ratione</i> : Canones isti procedunt, vel ab <i>episcopis</i> absque Pontifice, et eum non ligant, siquidem superior ab inferiore non ligatur ; — vel ab <i>ipso Pontifice</i>, nec illum obligant, quia nemo in seipsum vim coactivam habet ; nec successores ligant qui eadem potentur auctoritate ; — vel a <i>Pontifice simul et ab episcopis</i>, nec maiorem habent vim in illum quam si ab ipso solo procederent¹⁹. Attamen vim <i>directivam</i> habent in Pontificem, quatenus <i>honeste</i> agit <i>recteque</i> munus suum implet, eos sequendo. Imo non licite ageret, illos arbitrarie et sine ulla ratione mutando aut abrogando. Lex naturæ enim et divina postulat ut Pontifex, qui ex officio Ecclesiæ bonum procurare debet, canones in hunc finem prolatos exsequatur, quoadusque conditiones et circumstantiæ omnino diversæ et novæ exoriantur, quæ abrogationem eorum aut mutationem exigant. 502. V. Etiam in extraneos et dissidentes influxum beneficium exercet Ecclesia per magisterium et jurisdictionem²¹. — 1. Anima Ecclesiæ scilicet Spiritus S. <i>vitam divinam</i> effundere potest et reapse effundit in multos homines, qui <i>mentaliter tantum seu invisibiliter</i> aut <i>voto</i> ad Ecclesiam catholicam pertinent, et vivunt sive inter paganos sive inter dissidentes [Protestantes orthodoxos aut Græco-Russos]. 2. Item, licet infallibile Ecclesiæ magisterium sit	Therefore, far from being able to be moderated or impeded by ecclesiastical canons, it can also be exercised absolutely with regard to them. b) <i>By reason</i>: These canons proceed either from <i>bishops</i> without the Pope, and they do not bind him, since a superior is not bound by an inferior; — or from <i>the Pope himself</i>, nor do they oblige him, because no one has coercive power over himself; nor do they bind successors who possess the same authority; — or from <i>the Pope together with bishops</i>, nor do they have greater force against him than if they proceeded from him alone²⁰. Nevertheless, they have <i>directive</i> force upon the Pope, insofar as he acts <i>honorably</i> and <i>rightly</i> fulfills his office by following them. Indeed, he would not act lawfully by changing or abrogating them arbitrarily and without any reason. For natural and divine law demands that the Pope, who by office ought to procure the good of the Church, should carry out canons promulgated for this end, as long as entirely different and new conditions and circumstances do not arise which require their abrogation or change. 502. V. The Church also exercises beneficial influence upon outsiders and dissidents through her teaching authority and jurisdiction²². — 1. The soul of the Church, namely the Holy Spirit, can pour forth <i>divine life</i> and actually does pour it forth into many people who belong to the Catholic Church <i>only mentally or invisibly</i> or <i>by desire</i>, and who live either among pagans or among dissidents [Protestants, Orthodox, or Greco-Russians]. 2. Likewise, although the infallible magisterium of the Church is the

<i>Latin</i>	<i>English</i>
regulare medium, a Deo institutum et revelatio <i>integra</i> proponatur et <i>absque errore</i>, multis tamen <i>aliis viis</i>, cum motivis credibilitatis relative sufficientibus²³, revelatio proponi potest hominibus <i>bonæ voluntatis</i>, etiam ab hæreticis et schismaticis, dummodo hæc propositio retineat saltem minimum illud veritatis, quod necessitate mediæ explicite credendum docet Apostolus, Heb. 11, 6 : « <i>Credere... oportet accedentem ad Deum quia est, et quia inquirentibus se remunerator sit</i> ». Potest quidem fieri et sæpe accidit ut cum veris dogmatibus falsa quædam proponantur etiam tanquam revelata, tunc adultus, cui hæc proponuntur, veris articulis adhæret vera fide supernaturali infusa, falsis autem per accidens assentitur fide mere naturali et humana²⁴. At hæc propositio fidei quæ fit apud hæreticos et schismaticos, ab Ecclesiæ Catholicæ cathedra aliquantulum descendit : a) quia quidquid veritatis revelatæ sectæ, sese separando a vera Ecclesia, asportaverunt, illud certe tulerunt <i>e fidei deposito</i> soli infallibili Ecclesiæ commisso ; b) quia continua Ecclesiæ catholicæ <i>prædicatio</i> adhuc multum influit ad <i>conservanda hæc fidei reliqua</i> apud dissidentes, necnon, saltem indirecte, ad <i>alendam prædicationem</i> ecclesiarum omnium, quæ se dicunt christianas. Hacque ratione, Ecclesia Catholica, etiam apud dissidentes et extraneos, nuntium veritatis diffundit et ita viam salutis eis <i>faciliorem reddit</i>. 3. Evidens est quoque documenta pontificia de re	regular means instituted by God for proposing revelation in its <i>entirety</i> and <i>without error</i>, nevertheless, through many <i>other ways</i>, with relatively sufficient motives of credibility²⁵, revelation can be proposed to men <i>of good will</i>, even by heretics and schismatics, provided that this proposition retains at least that minimum of truth which the Apostle teaches must be explicitly believed by necessity of means, in Hebrews 11:6: “For he who would approach God must <i>believe</i> that he exists and that he rewards those who seek him.” It can indeed happen, and often does occur, that along with true dogmas certain false things are also proposed as if revealed; in such cases, the adult to whom these things are proposed adheres to the true articles with true supernatural infused faith, but gives assent to the false ones only accidentally with merely natural and human faith²⁶. But this proposition of faith which occurs among heretics and schismatics descends in some measure from the chair of the Catholic Church: a) because whatever revealed truth the sects carried away when separating themselves from the true Church, they certainly took it <i>from the deposit of faith</i> entrusted to the infallible Church alone; b) because the continuous <i>preaching</i> of the Catholic Church still greatly influences the <i>preservation of these remnants of faith</i> among dissidents, and also, at least indirectly, <i>nourishes the preaching</i> of all churches which call themselves Christian. And by this reasoning, the Catholic Church, even among dissidents and outsiders, spreads the message of truth and thus <i>makes the way of salvation easier</i> for them. 3. It is also evident that pontifical documents on social matters, on

<i>Latin</i>	<i>English</i>
sociali, de Actione Catholica etc., normasque practicas ab Ecclesia edictas de cultu, de vita morali, etc., <i>in omnes ecclesias</i> et non tantum in catholicam magnum exercere influxum.	Catholic Action, etc., and the practical norms issued by the Church concerning worship, moral life, etc., exercise great influence <i>on all churches</i> and not only on the Catholic Church.

Notes / Notae:

Pars II, Caput III, Articulus III, 3° De factis dogmaticis

<i>Latin</i>	<i>English</i>
514. Notio facti dogmatici. — Factum <i>dogmaticum</i> in genere est quodlibet <i>factum in se</i> non revelatum, sed <i>cum dogmate</i> ita <i>connexum</i>, ut necessarium sit ad dogma agnoscendum, custodiendum, explicandum aut rite proponendum. <i>Triplex</i> distinguui potest: 1. principaliter <i>historicum</i>, quo agnoscitur regula fidei, v. g. legitimitas concilii alicujus œcumenici aut Pontificis; 2. <i>doctrinale</i>, ut iudicium de sensu alicujus libri in ordine ad fidem; 3. <i>hagiographicum</i>, ut canonizatio sanctorum. De duobus ultimis tantum loquimur in præsentī, cum infallibilitas Ecclesiæ circa primum sponte defluat ex supradictis de concilio, de Pontifice et de ipsa Ecclesiæ indefectibilitate. « Quid prodesset enim in abstracto profiteri infallibilem conciliorum œcumenicorum (aut Pontificum R.) auctoritatem, si licitum esset dubitare de <i>legitimitate</i> cujuslibet concilii » aut Pontificis? »²⁷. 515. Ecclesia infallibilis est in iudicando de sensu alicujus libri in ordine ad fidem [<i>Theol. certum</i>]. — Ecclesia iudicat non	514. The Notion of a Dogmatic Fact. — A <i>dogmatic</i> fact in general is any <i>fact</i> which is not revealed <i>in itself</i>, but is so <i>connected with dogma</i> that it is necessary for recognizing, preserving, explaining, or properly presenting dogma. <i>Three</i> types can be distinguished: 1. primarily <i>historical</i>, by which the rule of faith is recognized, e.g., the legitimacy of some ecumenical council or of a Pope; 2. <i>doctrinal</i>, such as a judgment concerning the meaning of some book in relation to faith; 3. <i>hagiographical</i>, such as the canonization of saints. We speak only of the last two in the present discussion, since the infallibility of the Church regarding the first naturally flows from what has been said above concerning councils, the Pope, and the indefectibility of the Church itself. “For what would it profit to profess in the abstract the infallible authority of ecumenical councils (or of Roman Pontiffs), if it were permitted to doubt the <i>legitimacy</i> of any council” or Pope?²⁸. 515. The Church is infallible in judging the meaning of a book as it relates to faith [<i>Theologically certain</i>]. — The Church judges not

<i>Latin</i>	<i>English</i>
de sensu auctoris <i>pure subjectivo</i>, qui scilicet forte latebat in mente auctoris, sed de sensu objectivo et obvio, quem verba prae se ferunt, et quem auctor intendere debuit, si, verborum significationem cognoscens, <i>sincere</i> locutus fuerit. Hoc iudicium igitur circa <i>hæc duo</i> versatur : 1. utrum talis doctrina rectæ fidei sit <i>conformis</i> necne (quæstio juris); 2. utrum hæc doctrina in tali libro <i>contineatur</i> (quæstio facti). Ecclesiam infallibilem esse in his duobus dijudicandis, <i>probat</i>ur: a) Ex ipsa infallibilitatis natura : Ecclesia enim infallibilis est in quæstione <i>juris</i>, ut omnes concedunt ; sed, nisi infallibilis sit etiam in quæstione <i>facti</i>, depositum fidei integrum servare et fideles efficaciter ab erroribus præcavere nequiret et prorsus vana esset et illusoria ejus infallibilitas, cum quilibet falsas doctrinas impune spargere posset et condemnationem effugere, dicendo Ecclesiam non recte intellexisse sensum ejus libri. Ergo. b) Ex praxi Ecclesiæ : Ecclesia non errat in determinando infallibilitatis suæ objecto. Atqui, jam ab antiquis temporibus, de doctrina orthodoxa vel heterodoxa multorum scriptorum, infallibile iudicium protulit Ecclesia, illud ut <i>definitivum et absolutum</i> omnibus imponendo fidelibus ; v. g. concilium <i>Nicænum</i> damnavit <i>Arii librum</i>, qui « Thalia » inscriptus erat ; Conc. <i>Ephesinum</i> <i>Nestorii scripta</i> rejecit et Cyrilli opera approbavit ; Conc. <i>Constantinopolitanum</i> II <i>tria capitula</i> proscripsit ; conc.	the <i>purely subjective</i> meaning of the author, which perhaps remained hidden in the author's mind, but rather the objective and apparent meaning which the words themselves convey, and which the author must have intended if, knowing the significance of the words, he spoke <i>sincerely</i>. This judgment therefore concerns <i>these two aspects</i>: 1. whether such doctrine <i>is conformable</i> to right faith or not (question of law); 2. whether this doctrine <i>is contained</i> in such a book (question of fact). That the Church is infallible in judging both of these matters is <i>proven</i>: a) From the very nature of infallibility: For the Church is infallible in questions of <i>law</i>, as all concede; but unless it were also infallible in questions of <i>fact</i>, it could neither preserve the deposit of faith intact nor effectively safeguard the faithful from errors, and its infallibility would be entirely vain and illusory, since anyone could spread false doctrines with impunity and escape condemnation by saying that the Church had not correctly understood the meaning of his book. Therefore. b) From the practice of the Church: The Church does not err in determining the object of its infallibility. And indeed, from ancient times, the Church has pronounced infallible judgment concerning the orthodox or heterodox doctrine of many writers, imposing it upon all the faithful as <i>definitive and absolute</i>; for example, the <i>Nicene Council</i> condemned <i>Arius's book</i>, which was entitled "Thalia"; the <i>Ephesian Council</i> rejected <i>Nestorius's writings</i> and approved Cyril's works; the Second Council of <i>Constantinople</i> proscribed the <i>three chapters</i>; the Council of <i>Constance</i> ordered that anyone suspected of the errors of

<i>Latin</i>	<i>English</i>
<i>Constantiense quemlibet suspectum errorum Wiclef, Hieronymi de Praga et Huss interrogari jussit : « utrum credat, quod condemnationes... factæ de personis eorum, libris et documentis fuerint rite et juste factæ. et a quolibet catholico pro talibus tenendæ et firmiter asserendæ »²⁹.</i> Pius IX alienam a Doctrina Ecclesiæ, reprobendam et damnandam declaravit doctrinam a <i>Frohschammer</i> assertam, item Leo XIII confirmavit decretum <i>S. Officii</i>, quo prop. A. <i>Rosmini</i> « in proprio auctoris sensu reprobandas ac proscribendas esse judicavit »³¹. c) Præsertim ex casu Jansenii : 1. Jansenius, in libro « Augustinus », exponit et defendit diversos errores, tanquam doctrinam <i>S. Augustini</i>. Innocentius X, 1652, quinque propositiones ex libro excerptas damnat ut hæreticas³³. 2. Jansenistæ, ut effugerent damnationem, distinguunt inter quæstionem <i>juris et facti</i>, et contendunt has propositiones, <i>secundum se</i> sumptas, <i>jure</i> esse proscriptas, sed <i>de facto</i>, doctrinam damnatam non contineri in libro « Augustinus ». 3. At Alexander VII definit, 1656, has propositiones fuisse damnatas « in sensu ab eodem Jansenio intento » et imponit, 1665, formulam qua idem exprimitur ; Jansenistis nondum acquiescentibus Innocentius XII, [1694 et 1696] denuo declarat prop. Jansenii sensu <i>obvio</i> esse Damnatas³⁴. 4. Jansenistis autem putantibus <i>non</i> requiri assensum internum huic definitioni sed satis esse “<i>silentium religiosum</i>”,	<i>Wycliffe, Jerome of Prague, and Huss</i> be questioned: “whether he believes that the condemnations... made of their persons, books, and documents were properly and justly made, and should be <i>held and firmly asserted as such by every Catholic</i>”³⁰. Pius IX declared the doctrine asserted by <i>Frohschammer</i> to be alien to the Doctrine of the Church, deserving of reproof and condemnation. Likewise, Leo XIII confirmed the decree of the <i>Holy Office</i>, by which it “judged that the propositions of A. <i>Rosmini</i> were to be reproved and proscribed in the proper sense of the author”³². c) Especially from the case of Jansenius: 1. Jansenius, in his book “Augustinus,” expounds and defends various errors as though they were the doctrine of St. Augustine. Innocent X, in 1652, condemned five propositions extracted from the book as heretical³⁵. 2. The Jansenists, to evade condemnation, distinguished between questions of <i>law</i> and <i>fact</i>, and contended that these propositions, taken <i>in themselves</i>, were <i>rightly</i> proscribed, but that <i>in fact</i>, the condemned doctrine was not contained in the book “Augustinus.” 3. But Alexander VII defined, in 1656, that these propositions had been condemned “in the sense intended by Jansenius himself” and imposed, in 1665, a formula by which the same was expressed; when the Jansenists still did not acquiesce, Innocent XII, [1694 and 1696] again declared that the propositions of Jansenius were condemned in their <i>obvious</i> sense³⁶. 4. When the Jansenists maintained that internal assent to this definition was <i>not</i> required but that “<i>religious silence</i>” was sufficient, Clement XI,

<i>Latin</i>	<i>English</i>
Clemens XI, 1705, decernit “damnatum in quinque propositionibus Jansenii libri <i>sensum</i> quem illarum verba præ se ferunt, ut præfertur, ab omnibus Christi fidelibus <i>ut hæreticum</i> , non <i>ore</i> solum, sed <i>et corde</i> rejici ac damnari debere” ³⁷ .	in 1705, decreed that “the <i>sense</i> of Jansenius’ book condemned in the five propositions, which their words manifest, as stated, must be rejected and condemned by all the faithful of Christ as <i>heretical</i> , not only with the <i>mouth</i> , but also with the <i>heart</i> ” ³⁸ .

Notes / Notae:

1. {org. 1} D. 717 ; cf. art. 2 *Decl. Cler. gallic.*, D. 1323 ; synod. *Pist.*, D. 1598-1599 ; *Vat.*, s. 4, cp. 3 ; D. 1827.↵
2. {org. 1} D. 717 ; cf. art. 2 *Decl. Cler. gallic.*, D. 1323 ; synod. *Pist.*, D. 1598-1599 ; *Vat.*, s. 4, cp. 3 ; D. 1827.↵
3. {org. 2} Franzelin, *De Eccl.* th. 13.↵
4. {org. 2} Franzelin, *De Eccl.* th. 13.↵
5. {org. 3} D. 657, in nota.↵
6. {org. 3} D. 657, in nota.↵
7. {org. 1} D. 657, n. 2 ; 717, 740.↵
8. {org. 1} D. 657, n. 2 ; 717, 740.↵
9. {org. 2} *Summa concerning the Church* book 2, 99.↵
10. {org. 2} *Summa concerning the Church* book 2, 99.↵
11. {org. 3} Journet, volume 1, Excursus 7 and 8.↵
12. {org. 3} Journet, volume 1, Excursus 7 and 8.↵
13. {org. 4} Salembier, *The Great Western Schism*, p. 361, 379; *Apologetic Dictionary*, article on the Western Schism, col. 1238-1240; A. Baudrillart, *Theological Dictionary*, article on Constance (Council of), col. 1209, 1220; Franzelin, thesis 13, Scholion, p. 230 ff.; Noel Valois, *France and the Great Schism*, 4 volumes, Paris, 1896-1902; especially volume 4, p. 502; E. Vansteenberghe, *Theological Dictionary: Western Schism*, col. 1484-1490.↵
14. {org. 4} Salembier, *The Great Western Schism*, p. 361, 379; *Apologetic Dictionary*, article on the Western Schism, col. 1238-1240; A. Baudrillart, *Theological Dictionary*, article on Constance (Council of), col. 1209, 1220; Franzelin, thesis 13, Scholion, p. 230 ff.; Noel Valois, *France and the Great Schism*, 4 volumes, Paris, 1896-1902; especially volume 4, p. 502; E. Vansteenberghe, *Theological Dictionary: Western Schism*, col. 1484-1490.↵

15. {org. 1} Cf. Dublanchy, *Theological Dictionary*, article on Papal Infallibility, col. 1714-1717.↵
16. {org. 2} Cf. Innocent III, *Sermon 4, on the consecration of the pontiff*; Friend of the Clergy, 1937, p. 422; Cajetan, *On the Comparison of the Authority of the Pope and the Council*, chapter 27, n. 417-422.↵
17. {org. 1} Cf. Dublanchy, *Theological Dictionary*, article on Papal Infallibility, col. 1714-1717.↵
18. {org. 2} Cf. Innocent III, *Sermon 4, on the consecration of the pontiff*; Friend of the Clergy, 1937, p. 422; Cajetan, *On the Comparison of the Authority of the Pope and the Council*, chapter 27, n. 417-422.↵
19. {org. 3} Nicholas I, Letter to Emperor Michael; Boniface VIII, Bull “*Unam Sanctam*,” November 18, 1302; article 3 of the *Declaration of the Gallican Clergy*; Vatican [Council I], session 4, chapter 3; D. 333, 469, 1324, 1830.↵
20. {org. 3} Nicholas I, Letter to Emperor Michael; Boniface VIII, Bull “*Unam Sanctam*,” November 18, 1302; article 3 of the *Declaration of the Gallican Clergy*; Vatican [Council I], session 4, chapter 3; D. 333, 469, 1324, 1830.↵
21. {org. 1} Cf. Vatican Council [I], session 3, chapters 3 and 4; D. 1793, 1821.↵
22. {org. 1} Cf. Vatican Council [I], session 3, chapters 3 and 4; D. 1793, 1821.↵
23. {org. 2} Cf. n. 372.↵
24. {org. 3} Cf. n. 226.↵
25. {org. 2} Cf. n. 372.↵
26. {org. 3} Cf. n. 226.↵
27. {org. 1} Van Noort, n. 89; cf. D. 212, 657, 658, 674, etc.↵
28. {org. 1} Van Noort, n. 89; cf. D. 212, 657, 658, 674, etc.↵
29. {org. 1} D. 214-247, 225, 387, 659 sq.↵
30. {org. 1} D. 214-247, 225, 387, 659 sq.↵
31. {org. 2} D. 1667, 1669, 1673, 1675; D. 1930 a.↵
32. {org. 2} D. 1667, 1669, 1673, 1675; D. 1930 a.↵
33. {org. 3} D. 1092 sq.↵
34. {org. 4} D. 1098, 1099 and n. 3.↵
35. {org. 3} D. 1092 sq.↵
36. {org. 4} D. 1098, 1099 and n. 3.↵

37. {org. 1} D. 1350. Concerning these matters, cf. *Dict. théol.* [Dictionary of Theology], art. Jansenism, col. 500-522; art. Quesnel, col. 1467 sq., 1500 sq.; Zapelena, vol. 2, p. 238 sq.↵
38. {org. 1} D. 1350. Concerning these matters, cf. *Dict. théol.* [Dictionary of Theology], art. Jansenism, col. 500-522; art. Quesnel, col. 1467 sq., 1500 sq.; Zapelena, vol. 2, p. 238 sq.↵